

Ravi Shankar Tiwari v. Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 August 2016 · WRIT-C No. 39695 of 2016 · **Writ dismissed; petitioner relegated to EA 2003 and Supply Code 2005 remedies.**

HEADNOTE

A consumer sought a mandamus that PuVVNL ensure uninterrupted supply on his connection without interference from private respondents, and that those respondents be punished for alleged electricity theft. The Division Bench held the controversy was a private dispute and declined writ relief, leaving the petitioner to remedies under the Electricity Act, 2003 read with the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ravi Shankar Tiwari, holder of electricity Connection No. 250305, filed a writ petition in the Allahabad High Court against the Executive Engineer of Purvanchal Vidyut Vitran Nigam Ltd. and six others. He sought a direction that the licensee officials ensure smooth supply on that connection without interference from private respondents 3 to 7, and that punitive action be taken against those respondents for alleged theft of electricity.

HOLDING-UNITS

INTERPLAY · EA2003:: / UP-2005::

writ maintainability; private dispute; statutory remedy

HOLDING

Where a consumer's writ asking the distribution licensee to ensure supply and to punish private persons for alleged theft is, prima facie, a private dispute between the consumer and those private respondents, the High Court will not grant mandamus. The petitioner may pursue the remedies available under the Electricity Act, 2003 read with the Electricity Supply Code, 2005; the writ is dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RESPONDENTS 3 TO 7 WERE COMMITTING ELECTRICITY THEFT, AND WHETHER THE LICENSEE WAS OBLIGED TO ENSURE UNINTERRUPTED SUPPLY ON CONNECTION NO. 250305 OR TO TAKE PUNITIVE ACTION.

Treated as a private dispute and left to statutory remedies under the Electricity Act, 2003 and the Supply Code, 2005. ¶ 1